

Calendar Line 8

Case Name: *Sophie Yeh v. The Harker School et al.*

Case No.: 23CV418929

Plaintiff Sophie Yeh moves to compel further responses to requests for production of documents from defendant The Harker School. The court has reviewed the text of the requests and the responses at issue, and it now rules as follows:

- The court agrees with plaintiff that defendant’s responses to Requests Nos. 2 and 3 fail to include a statement of compliance. Although this may seem like a technicality, the wording of defendant’s responses is improper: it asserts a number of boilerplate objections and then it simply states: “Without waiving and subject to said objections The Harker School responds as follows . . . ,” followed by a listing of documents. These responses must be supplemented to include a verified statement of compliance. Contrary to defendant’s position, it is not simply a matter of “reverifying” the responses. The responses themselves are improperly worded and must be amended and then verified.
- Similarly, the court finds that the responses to Requests Nos. 8-13, 18, 27, and 31-32 are also improperly worded. Rather than state that “All tree-related documents within the possession, custody or control of The Harker School are attached hereto as . . . ,” the response should state: “The Harker School will produce all responsive documents within its possession, custody or control, including the documents attached hereto as [Bates numbers].” Otherwise, this is also an ambiguous and unclear statement of compliance/non-compliance.
- Defendant must amend its response to Request No. 7. The basis upon which defendant has opposed this motion is the notion that producing communications with other students injured by the tree, as well as communications with their families, would violate the Family Educational Rights and Privacy Act (FERPA). First, as plaintiff correctly notes, defendant’s written response failed to include any objection based on FERPA.⁵ Second, and more critically, the court is not persuaded that communications between the school and other students’ families would fall within the scope of FERPA, which is designed to protect a child’s educational records. Defendant fails to explain how communications about potential injuries to students from a fallen tree could constitute the *educational records* of those students. Defendant presents no authority to support its position, and the court strains to see how such a broad interpretation of FERPA would serve the legislative purpose behind that statute. To the extent that the objection is not waived, it is overruled.
- Based on counsel’s representation that all documents that have been withheld on the basis of privilege (other than those responsive to Request No. 7, discussed above) are included in the privilege log that has already been served, the court finds that no

⁵ Indeed, in the meet-and-confer correspondence between the parties, there is no discussion of FERPA, either. Instead, in an April 4, 2024 letter, it appears that defendant tried to invoke “HIPPA[sic],” which is also inapplicable.

further privilege log is called for at this time. But if documents are withheld on the basis of privilege in response to Request No. 7, then they must be logged.

The court GRANTS plaintiff's motion to compel IN PART. The court denies defendants' request for monetary sanctions. Defendant shall serve amended or supplemental responses to the foregoing requests for production within 20 days of notice of entry of this order.

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